

**SUBSTITUTE FOR
HOUSE BILL NO. 5574**

A bill to amend 1931 PA 328, entitled
"The Michigan penal code,"
(MCL 750.1 to 750.568) by adding section 409c.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 409c. (1) Except as provided in subsections (2) and (3),**
2 **an individual who, after receiving a verbal warning not to approach**
3 **from a person the individual knows or reasonably should know is a**
4 **first responder performing the first responder's duties, knowingly**
5 **and willfully violates the warning and approaches and remains**
6 **within 25 feet of the first responder with the intent to do any of**
7 **the following is guilty of a misdemeanor punishable by imprisonment**
8 **for not more than 60 days, a fine of not more than \$500.00, or**
9 **both:**



1 (a) Impede or interfere with the first responder's ability to
2 do the first responder's duty.

3 (b) Threaten the first responder with physical harm.

4 (c) Harass the first responder.

5 (2) An individual who violates subsection (1) causing injury
6 to the first responder is guilty of a felony punishable by
7 imprisonment for not more than 2 years, a fine of not more than
8 \$1,000.00, or both.

9 (3) An individual who violates subsection (1) causing the
10 death of the first responder is guilty of a felony punishable by
11 imprisonment for not more than 15 years, a fine of not more than
12 \$7,500.00, or both.

13 Enacting section 1. This amendatory act takes effect 90 days
14 after the date it is enacted into law.

15 Enacting section 2. This amendatory act does not take effect
16 unless House Bill No. 5575 of the 103rd Legislature is enacted into
17 law.